

Court No. - 40

Case :- WRIT - C No. - 20403 of 2018

Petitioner :- Banshi Wale

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ajay Kumar Dwivedi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department.

The petitioner is in default of electricity dues for almost eight years. The contention raised is that the payment may be not more than Rs.4 lakhs and odd whereas the recovery sought to be made is of more than Rs.8 lakhs. The electricity connection is for running a flour mill. In such circumstances if the petitioner is raising a billing dispute he has to approach the Executive Engineer concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and make the deposits in order to explain his bonafides inasmuch as we do not find this to be a fit case for entertaining the writ petition for the relief as prayed for as the petitioner is a long time defaulter. Consequently we dispose of the writ petition with a direction to the petitioner to approach the concerned Executive Engineer for the redressal for his grievances. It shall also be open to the petitioner to seek the relief of making the payment in easy installments keeping in view the provisions of Clause 6.14 of the U.P. Electricity Supply Code, 2005.

Order Date :- 30.5.2018

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